

**FORMAL WRITTEN COMPLAINT TO THE ACADEMIC RIGHTS AND
RESPONSIBILITIES COMMITTEE**

University of Nebraska-Lincoln

Submitted pursuant to ARRC Procedures Section 4.2

Date of Combined Complaint: 5/20/2026

MANDATORY ELEMENT 4.2.1.1: COMPLAINANTS

The following individuals, presented in no particular order, submit this complaint in their individual capacities and are each willing to participate in the ARRC process.

From the Department of Educational Administration (EDAD):

1. Shavonna Holman — [Mailing Address] — 402-681-4931
2. Katherine Wesley — 141 Teachers Hall, Lincoln, NE 68588 — 360-320-2060
3. Stephanie Bondi — 117 Teachers College, Lincoln, NE 68588 — 402-937-0533
4. Elizabeth Niehaus — 133 Teachers College Hall, Lincoln, NE 68588 — 402-937-0307
5. Sarah Zuckerman — 226 S. 29th St., Lincoln NE 68510 — 202-253-0225
6. Crystal Garcia — [Mailing Address] — 214-868-8038
7. Corey Rumann — [Mailing Address] — 402-840-7441
8. Deryl Hatch-Tocaimaza — 119 Teachers College, Lincoln, NE 68503 — 617-935-3799
9. Tayeon Kim — [Mailing Address] — [Phone Number]

From the Department of Statistics:

1. Bhaskar Bhattacharya — 340 Hardin Hall North, Lincoln, NE, 68503 — 402-472-7302
2. Christopher Bilder — 5311 Mission LN, Lincoln, NE 68521 — 402-472-3690
3. Sanjay Chaudhuri — 340 Hardin Hall North Wing, Dept. of Stat. UNL EC-0963, Lincoln, NE USA — 402-472 2991
4. Bertrand Clarke — 2330 S. 75 Street, Lincoln, Nebraska, 61806 — 402-472-5574
5. Jennifer Clarke — [Mailing Address] — 402-472-2512
6. Kent Eskridge — [Mailing Address] — 402-472-7213
7. Souparno Ghosh — [Mailing Address] — 402-472-2084
8. Heike Hofmann — [Mailing Address] — 402-472-2903
9. Indranil Mukhopadhyay — [Mailing Address] — 402-472-7214
10. Xueheng Shi — [Mailing Address] — 402-472-2838
11. Susan VanderPlas — 6121 S 97th St, Lincoln, NE 68526 — 402-472-2903

12. Dixon Vimalajeewa — [Mailing Address] — 402-472-2084

From the Department of Earth and Atmospheric Sciences (EAS):

1. Erin Haacker — 330 Bessey Hall, Lincoln, NE 68588 — 402-480-0651
2. Clinton Rowe — [Mailing Address] — [Phone Number]
3. Mindi Searls — 220A Bessey Hall, Lincoln, NE 68588 — 402-405-3601
4. Dawn Kopacz — 220C Bessey Hall, Lincoln, NE 68588 — 414-426-8516
5. Caroline (Cara) Burberry — 206 Bessey Hall, Lincoln, NE 68588 — 531-249-9550
6. Ross Dixon — 221 Bessey Hall, Lincoln, NE 68588 — 443-632-6017
7. Irina Filina — 223 Bessey Hall, Lincoln, NE 68588 — 531-739-8174
8. Ross Secord — [Mailing Address] — [Phone Number]
9. Matthew Van Den Broeke — 306 Bessey Hall, Lincoln, NE, 68588 — 402-472-2663
10. Adam Houston — [Mailing Address] — [Phone Number]
11. Sherilyn Fritz — 302 Bessey Hall, Lincoln, NE 68588 — 402-202-1912
12. David Harwood — 328 Bessey Hall, Lincoln, NE 68588 — 402-417-9669
13. Richard Kettler — [Mailing Address] — [Phone Number]
14. (Charles) Andrew Hoopes — 509A Bessey Hall, Lincoln, NE 68588 — 717-916-4051
15. Peter Wagner — [Mailing Address] — [Phone Number]

From the Department of Textiles, Merchandising & Fashion Design (TMFD):

1. Yiqi Yang — 234 GNHS Building, Lincoln, NE 68583-0802 — 402-786-8235

From the College of Arts and Sciences (CAS):

1. Herman Batelaan — 3932 Apple Street, Lincoln, NE 68503 — 4026011702
2. Bradley Shadwick — [Mailing Address] — [Phone Number]
3. Jordan Stump — 1111 Oldfather Hall, Lincoln NE 68588 — 402 476 3832
4. Peter Dowben — 855 North 16th Street, Lincoln, NE 68588 — 402-472-9838

MANDATORY ELEMENT 4.2.1.2: RESPONDENTS

The following individuals are named as respondents. Although some public statements were in violation of bylaws and/or standards of professional conduct, much of the decision making and communication took place behind closed doors, possibly with no documentation of who said or knew what at what time. However, this should not prevent accountability or restitution.

1. **Kathy Ankerson**, Interim Chancellor, University of Nebraska-Lincoln. Named in lieu of Rodney Bennett, Chancellor at time of actions, as well as in her capacity as Interim Chancellor for actions taken after assuming that role. Specifically: her refusal to reinstate the eliminated departments or any terminated faculty; her refusal to revisit or remediate the elimination process; and her adoption of the position that the university must move forward without any attempt to repair the harms described in this complaint, including

strategic hiring next year while faculty are being terminated. Both Kathy Ankerson and Rodney Bennett have failed to uphold the bylaws as required by the office and described below.

2. **Mark Button**, Executive Vice Chancellor and Chief Academic Officer, University of Nebraska-Lincoln. Button led the Executive Leadership Team that was charged with the budget reduction process (see <https://chancellor.unl.edu/message-chancellor-budget-reductions/>). He participated in the Academic Planning Committee and was a primary conduit of information or lack thereof. Beginning in Spring 2025, he ignored or rebuffed efforts from the faculty to raise the alarm that the metrics analysis was flawed. He has failed to uphold the bylaws as required by his office and described below.
3. **James Volkmer**, Assistant Vice Chancellor for Budget, Planning, and Analytics. The enormous errors and missteps in budget, planning, and analytics played a key role in the failures of the budget reduction process that led to this grievance. Volkmer has failed to uphold the bylaws as required by his office and described below.
4. **Tiffany Heng-Moss**, Vice Chancellor for the Institute of Agriculture and Natural Resources (IANR), University of Nebraska-Lincoln. Heng-Moss serves on the Executive Leadership Team. She appeared to have a leading role in budgetary decisions, particularly in closure of the Department of Statistics, and had an unknown role in retention of faculty (and failure thereof) from the Department of Earth and Atmospheric Sciences. She has failed to uphold the bylaws as required by her office and described below.
5. **Jennifer Nelson**, Vice Chancellor for Research and Innovation, University of Nebraska-Lincoln. Nelson serves on the Executive Leadership Team. She participated in the Academic Planning Committee and had an additional but poorly understood role in decision making as part of the Executive Leadership Team. She has failed to uphold the bylaws as required by her office and described below.
6. **Jordan Gonzales**, Chief of Staff to the Chancellor. Named in lieu of Josh Davis, Vice Chancellor for Institutional Strategy and External Relations, University of Nebraska-Lincoln (at time of actions). Davis served on the Executive Leadership Team, participated in the Academic Planning Committee, and had an additional but poorly understood role in decision-making as part of the Executive Leadership Team. Davis failed to uphold the bylaws as required by his office and described below. As far as is known to the complainants, Gonzales had no role in these failures. However, it is impermissible that someone in a position of trust could violate the bylaws and then prevent any form of redress by leaving the institution. Therefore, the occupant of the office must answer to their predecessor's failure to uphold the bylaws.
7. **Ann Barnes**, Interim Vice Chancellor, Business and Finance. Barnes is charged with leadership of UNL's "financial and operational functions." She serves on the Executive Leadership Team. Faculty spent a great deal of time generating suggested alternatives to program cuts that would have kept degree pathways and faculty lines intact, and it does not appear that these were pursued in any serious way by the administration, in addition to the failure to consider revenue and the failure to provide clarity on the university budget. She has failed to uphold the bylaws as required by her office and described below.

8. **Jeffrey Gold**, President, University of Nebraska System. Gold failed to distribute sufficient state funding to UNL, and then failed to ensure that members of the UNL administration were pursuing budget cuts within the strictures of the bylaws. The NU system is rumored to have played a role in directing cuts, but a lack of transparency has made it difficult to know who made what decisions. Members of the administration at the NU and UNL levels have pointed blame to each other, and so the complainants are taking an inclusive approach to this grievance.
9. **David Jackson**, Interim Executive Vice President and Provost, University of Nebraska System. Jackson failed to ensure that members of the UNL administration were pursuing budget cuts within the strictures of the bylaws. The NU system is rumored to have played a role in directing cuts, but a lack of transparency has made it difficult to know who made what decisions. Members of the administration at the NU and UNL levels have pointed blame to each other, and so the complainants are taking an inclusive approach to this grievance.
10. **Drew Nielsen**, Director of Compliance, University of Nebraska System. Nielsen failed to ensure that members of the UNL administration were pursuing budget cuts within the strictures of the bylaws, and failed to respond to EthicsPoint complaints regarding documented violations of the bylaws.

MANDATORY ELEMENT 4.2.1.3: STATEMENT OF FACTS GIVING RISE TO COMPLAINT

A. Overview

In Spring 2025, members of the UNL administration announced that there would be an effort to close a \$21 million structural budget deficit in state-aided funds.

In Fall 2025, the University of Nebraska-Lincoln Executive Leadership Team (ELT), under the direction of then-Chancellor Rodney Bennett and NU System President Jeff Gold, presented their plan for a budget reduction process that culminated in the elimination of four academic departments: the Department of Earth and Atmospheric Sciences (EAS), the Department of Educational Administration (EDAD), the Department of Statistics, and the Department of Textiles, Merchandising & Fashion Design (TMFD). On December 5, 2025, the University of Nebraska Board of Regents voted to terminate all four departments regardless of recommendations from the Academic Planning Committee (APC). In total, the budget reduction plan included \$21 million in reductions for closing the structural deficit, and an additional \$6.5 million in “proactive reductions.” The total estimating savings from program closures was \$6.74 million, indicating that only \$240,000 of the program elimination savings was used to balance the budget.

As a result of these eliminations, tenured, tenure-track, and term-appointed faculty in the affected departments have had, or will have, their appointments terminated in violation of their academic rights and in violation of multiple bylaws and procedures of the Board of Regents, the University of Nebraska-Lincoln, the APC, and the Graduate College. Additionally, members of the ELT engaged in professional misconduct and defamation through their knowing use of incorrect data

and statistical analyses to characterize the affected departments as "lower performing" before shared governance bodies and the Board of Regents, as well as in the media.

B. The Budget Reduction Process and Flawed Metrics

Beginning in Spring 2025, the ELT developed a set of quantitative metrics to evaluate the performance of academic departments at UNL. These metrics were used to identify departments for possible elimination as part of a \$27.5 million budget reduction effort. On September 11, 2025, faculty in EAS, EDAD, Statistics, and TMFD were notified in department meetings by EVC Mark Button and Vice Chancellor Heng-Moss that their departments had been proposed for elimination. These proposals were released publicly less than 24 hours after departments were informed and less than one month before APC hearings were scheduled.

The UNL metric analysis was fundamentally and knowingly flawed in multiple respects:

Incorrect interpretation of z-scores. The ELT used negative z-score values as the primary basis for characterizing departments as "lower performing" in formal proceedings before the APC, the UNL Graduate Council, the NU Executive Graduate Council, and the Board of Regents. Jason Casey, Director of Institutional Effectiveness and Analytics and provider of data analytics assistance for the ELT, stated explicitly in writing on May 17, 2025, that "neither positive nor negative z-scores carry any interpretation other than distance from the mean in standard deviations. A negative score does not imply that a unit does something poorly." Despite possessing this correct guidance and distributing this statement to unit leaders at that same time, the ELT proceeded to use negative z-scores as evidence of lower performance throughout the elimination process. The ELT also created new, non-standard definitions of "outliers" — defining a z-score outside of ± 1 as an outlier — when the standard statistical definition requires a z-score at least outside of ± 2 to constitute an outlier. It is not usual for z-scores to be outside of ± 1 . Under a standard normal distribution, approximately one-third of all values fall outside of ± 1 . The ELT did not give any examples of how data were collected, or how data, including third-party data from the Academic Analytics vendor, were verified, and there is no evidence that any attempt was made to vet the metrics before they were used to make decisions.

Incorrectly formulated z-scores. The ELT calculated z-scores by comparing departments across fundamentally different academic disciplines using a single overall mean and standard deviation, rather than comparing each department to its own disciplinary peers. This is incorrect because of the different norms within disciplines. When departments are correctly compared within their own disciplines, some of the eliminated departments are in the top quartile.

A fundamental computational error. Statistics faculty identified a further critical error in the ELT's metric calculations: in constructing certain composite metrics, the ELT produced variables with no estimable mean and infinite variance, rendering the resulting z-scores mathematically meaningless. Because these faulty z-scores were then averaged with others, all subsequent calculations incorporating them were also invalid. The ELT refused to acknowledge, let alone correct, these errors.

Violation of Academic Analytics' own guidelines. The ELT's use of Academic Analytics data to justify program eliminations violated Academic Analytics' own published Principles and Guidelines for Implementation, which explicitly caution that data must be interpreted within appropriate disciplinary contexts and warn that the data "should not be deployed as a punitive tool to assess faculty members nor to deprive faculty members or units of resources." The

administration compared results across fundamentally different disciplines, removing the essential disciplinary context that Academic Analytics requires. The UNL Graduate Council identified this violation in its October 22, 2025, letter to the Executive Graduate Council.

Structural bias against graduate-intensive programs. The metrics were structurally biased against graduate-heavy programs. Five of the six programs proposed for elimination — and four of the six proposed for merger — were among the top 25 departments at UNL by percentage of graduate enrollment. This resulted from the instructional efficiency metrics failing to distinguish between graduate and undergraduate instruction. Graduate courses are appropriately smaller than undergraduate courses, reflecting the advanced mentorship and research training that is the purpose of graduate education — not inefficiency. The metrics therefore systematically penalized departments for fulfilling their graduate education mission. UNL policies, described below, specifically instruct officials to consider the level of instruction, the mode of instruction, and average number of contact hours, representing thus a violation of pertinent policy.

Factual errors and omissions in the data. The metrics contained significant factual errors in data attribution and omitted substantial categories of faculty contributions, including creative scholarship, Extension activities, co-investigator grant funding, software development, and contributions by faculty who had retired or departed during the measurement period. The metrics did not account for the stage of development of new programs. The metrics applied instructional productivity measures to EDAD, a department with no undergraduate programs, but one of the largest doctoral enrolling departments at UNL. The metrics did not account for necessarily smaller class sizes in studio-based programs such as TMFD, and excluded all externally funded research that did not originate from a few federal sources, further understating faculty productivity. Specific documented examples include:

- **EAS degree production and research awards:** The administration's materials stated that EAS averaged 5.8 MS degrees per year. The EAS department chair reported that the actual average was either 8.8 MS/year (period ending August 2025) or 9.2 MS/year (period ending August 2024). All three figures exceed the Nebraska CCPE minimum threshold of 5 per year, meaning the administration's own figure, even if accepted, did not support elimination under CCPE criteria. In addition, the metrics excluded at least \$5.3 million in externally funded research by failing to count any co-PI funding and support from major agencies such as NOAA, NASA, USGS, and Nebraska state agencies, because Academic Analytics does not account for funding from these sources, and information from Academic Analytics was not apparently vetted for accuracy and completeness.
- **Statistics completion majors metric:** The administration's materials to the UNL and Executive Graduate Councils singled out the Statistics "completion majors (-1.38)" metric as an instructional outlier without disclosing that the department had only launched its first undergraduate programs in 2022 and 2023, and no students could yet have completed four-year degrees. This context was raised by Statistics faculty in an email to EVC Button on October 20, 2025; Button acknowledged the issue on October 21 but failed to provide the necessary context to the graduate councils before it voted, and did not respond to follow-up inquiry. Furthermore, no context was provided to the graduate councils, the APC, or the Board of Regents why completion majors had a negative value.

- **TMFD and college mission:** The administration's justification for eliminating TMFD stated that the program "is not central to the mission of the College of Education and Human Sciences." However, the Dean of CEHS stated at the APC public hearing that he believes TMFD is, in fact, central to the College's mission. Additionally, TMFD was not coded correctly in Academic Analytics, meaning that it was never compared with its peers. This error was repeatedly pointed out and never addressed.

Lack of reproducibility. The ELT refused to release the underlying data and source code used to calculate the metrics, refused to release z-scores for all departments simultaneously, and refused to allow independent verification of the analysis. This made it difficult for affected departments to fully understand or respond to the basis for their proposed elimination, in direct violation of the requirements of the APC Procedures. The APC itself acknowledged that it "did not have time to validate the metrics structure or underlying data prior to decisions being made."

Qualitative assessments without documentation. EVC Mark Button stated that a qualitative analysis was undertaken in addition to the quantitative metrics. However, no formal qualitative analysis was conducted, reflecting a glaring failure of rigor in contrast to the stature of a research-intensive institution; Button clarified that he was referring to informal discussions that were not recorded or made available. Departments were thus ultimately selected for elimination on the basis of opinion combined with flawed quantitative metrics, with no public accountability.

Despite repeated and documented communications from affected departments — including formal APC presentations, written reports, emails to ELT members, and EthicsPoint reports — identifying these errors, the ELT steadfastly refused to make any corrections or to engage substantively with the concerns raised. In particular, the Department of Statistics invited EVC Button and his data analytics group to participate in a seminar for the UNL community that would discuss the metrics. EVC Button declined because “the seminar series in the Department of Statistics is not part of the university’s standing procedures for considering budget reduction proposals.” We note that attendance at seminars is not prohibited according to the Procedures; the use of faulty data and obfuscation, however, are prohibited.

C. The Academic Planning Committee Process

In October 2025, the APC held hearings on the proposed eliminations and issued its formal recommendation to Chancellor Bennett on October 24, 2025. The APC's report, its votes, and the conditions under which it operated reflect significant violations of the requirements of the APC Procedures, as well as serious unresolved concerns about the metrics and the process.

APC votes on the affected departments were as follows:

- **Statistics:** 13 opposed to elimination, 8 in favor — a negative recommendation
- **EAS:** 11 opposed to elimination, 9 in favor, 1 abstention — a negative recommendation
- **EDAD:** 10 opposed, 11 in favor — a narrow affirmative vote
- **TMFD:** 9 opposed, 12 in favor — an affirmative vote

Note that no APC members recused themselves from voting, including members of the administration who put together the proposals that were being voted on, in violation of precedent. Beyond this, the vote totals alone do not capture the full picture of the APC's findings. The APC's written report reflects deep concern about the elimination process across all four

departments, regardless of individual vote outcomes. The APC explicitly stated that "cuts to academic programs should be undertaken only as an absolute last resort" and that the AAUP standard requires that program discontinuance "be based essentially upon educational considerations, as determined primarily by the faculty as a whole or an appropriate committee thereof," and that "educational considerations do not include cyclical or temporary variations in enrollment." The APC further stated that "it is clear to us that each of these units provides unique, valuable contributions to the research, creative, teaching, outreach, and Extension missions of the University." Given that the eliminations were on the same order as the "proactive reductions" that were not needed to close the budget deficit, closing programs was clearly not a last resort.

Even among voters who voted in favor of eliminating TMFD and EDAD, the written explanations show that these voters largely expressed hope that the programs could be retained through realignment or restructuring, not outright elimination. For TMFD, all voters in favor "expressed hope that the program could be retained through realignment" and noted "several promising initiatives for increasing enrollment that have just recently launched." For EDAD, even in-favor voters called for "better coordination across the NU System alongside a desire to retain essential pathways for educational administration credentials at UNL" and noted "the need for thoughtful deliberation before final decisions are made."

The APC issued a strong across-the-board recommendation for delay, stating: "We strongly recommend to the Chancellor, the President, and the Board of Regents that the approval of any budget cuts be delayed allowing time for units to identify creative alternative solutions that reduce or prevent the need for these cuts." The APC further noted that "to provide this delay for academic cuts costs nothing, as the timeline for implementation of this process is at least 14 months, and much longer to accommodate teach-out plans." This recommendation for delay was ignored by the ELT, the Chancellor, the President, and the Board of Regents.

The APC raised serious, unresolved concerns about the metrics that apply across all four departments regardless of individual vote outcomes. The APC stated that "no one was able to fully validate the metrics, either through confirming the accuracy of the underlying data or via analysis to confirm that the metrics were statistically valid ways to quantify the desired performance indicators." The APC identified the following specific unresolved problems: inappropriate use of z-scores to compare units from different disciplines; metrics that cannot be meaningfully interpreted statistically; issues with how the metrics treated differential tuition; and bias toward larger units with established undergraduate programs. The APC stated that "serious attempts to publicly and transparently address these concerns should have been undertaken" and explicitly recognized that the lack of clarity about whether corrected metrics would have altered the outcome "is problematic when making decisions of this magnitude." The APC also noted that the metrics entirely failed to capture units' contributions to outreach and Extension, which comprise "some of the most publicly visible contributions of UNL faculty to the State."

No APC members recused themselves from voting, including ELT members who had helped craft the elimination proposals. The APC's own report acknowledged: "No members of the Academic Planning Committee recused themselves from voting, so these votes represent the combined opinions of faculty, students, staff, and administrators, including the administrators who helped craft the plan." The APC noted this created conflicts of interest that made open voting "problematic," which is why voting was conducted anonymously. Had ELT members

recused themselves, the outcome of the EDAD vote (11-10) and potentially the TMFD vote (12-9) could have differed. This was in contrast to proposals to the APC from previous administrations, in which members of the administration recused themselves.

The hearings were not conducted as required by the APC Procedures. Armed guards were posted to prevent attendance by anyone beyond eight pre-vetted representatives per department, with each department given only 45-50 minutes to present. A livestream was provided, but a livestream is not equivalent to a public hearing. Since department eliminations affect students, staff, faculty, postdoctoral researchers, colleagues, alumni, donors, external partners, and community members, it was impossible for “all affected persons and/or their representatives” to have an adequate opportunity to present, as is stated in APC policy. Faculty were told to move even while standing at a public bus stop outside the building. In addition, the justification for elimination read at the APC hearings was not the same as the information presented to departments on September 11, 2025.

The APC was not given time to adequately evaluate the revenue implications of the eliminations. The APC explicitly noted: “We also did not have time to consider the revenue side of the budget equation. All units noted in their hearings that they are revenue-positive, meaning that elimination of those units may end up costing the University more than it would save.” This is consistent with, for example, EDAD's own detailed financial analysis, which demonstrates that the department generates approximately \$28,000 in net annual revenue under conservative accounting, and EAS conservatively estimated its net annual revenue at approximately \$150,000, directly contradicting the Chancellor's claimed savings of \$1.7 million.

The APC was not given time to adequately evaluate alternative proposals. The APC report expressly acknowledged that the abbreviated timeline limited both the affected units’ ability to develop feasible alternative proposals and the APC’s ability to evaluate them. The report stated that the APC “did not have time” to consider the revenue side of the budget equation, that alternative proposals had been welcomed but could not be “fully realize[d]” within the available timeline, and that “fully formed and feasible proposals” could not realistically be generated in the “very short window” provided. The APC therefore recommended delaying approval of budget cuts to allow affected units time to identify alternatives that could reduce or prevent the need for program eliminations.

The APC did not use the established criteria for program elimination and the criteria for non-elimination. The APC Procedures establish two sets of evaluative criteria, summarized below, to guide decisions regarding program reduction or elimination: (a) criteria that may support consideration of elimination, and (b) criteria indicating that elimination is inadvisable. These criteria constitute the substantive standards through which program viability is to be assessed.

Criteria for Elimination

1. Present and probable future demand is insufficient, as indicated by one or more over a protracted period:
 - a. Number of completed applications
 - b. Student credit hours (SCH) generated

- c. Number completed majors/degrees
- d. Market demand specific employment
- e. Market demand for service program
- f. Quality and quantity of research
- g. Level of external funding
- 2. Absence of accreditation where expected
- 3. Significant decline in productivity
- 4. Instructional productivity under average (with specific instructions to consider the level of instruction, the mode of instruction, and average number of contact hours – considerations especially salient for graduate-intensive departments)
- 5. Elimination would not impair other programs
- 6. Program's contribution to UNL is marginal

Criteria for non-elimination

- 1. Achieved (inter)national reputation
- 2. Program better equipped than other colleges or universities
- 3. Program one of its kind in Nebraska
- 4. An essential program for every university
- 5. Elimination would negatively impact education and society in Nebraska
- 6. Elimination would result in substantial loss of sponsored revenue, gifts, contracts...
- 7. Elimination would be a substantial capital investment loss not readily redirected
- 8. Program gives UNL its distinctive character

Although these criteria are explicitly set forth in the APC Procedures as the full set of considerations for decision making, the APC report does not demonstrate systematic application of either set of criteria to the programs under review. The report includes vote totals and synthesized explanations of voters' comments, some of which reference matters that overlap with APC criteria. However, it does not identify, for each affected department, which criteria supporting elimination were found to be satisfied, which criteria indicating elimination was inadvisable were found to apply, or how conflicting evidence was weighed.

Instead, the synthesized explanations include a mixture of selected criteria-related observations, broader strategic considerations, procedural constraints, and administrative contingencies not specified in the APC Procedures as criteria for program elimination. The report does not distinguish them from criteria-based findings, nor does it explain whether such non-enumerated considerations were treated as background context or as substantive bases for recommending elimination.

The affected departments were provided the APC criteria and structured their written submissions and presentations accordingly. The record, however, does not show whether or how

the APC evaluated those submissions through the full set of established criteria, nor does it show that criteria-based findings were communicated to the Chancellor or the Board of Regents. This omission leaves the APC recommendations without an adequately documented criteria-based decision in the record.

Despite the APC's recommendations to retain EAS and Statistics, and its universal recommendation for delay, the Chancellor, President, and Board of Regents proceeded with all four eliminations without working with shared governance partners to identify alternatives, as required by Section 5 of the APC Procedures.

D. Graduate Governance Votes

In addition to the APC's proceedings, two graduate governance bodies reviewed the proposed eliminations and voted unanimously to retain all affected graduate programs.

UNL Graduate Council: unanimous 10-0 vote to retain all programs. The UNL Graduate Council met on October 16, 2025, and voted unanimously 10-0 by secret ballot to retain each of the graduate programs proposed for elimination, including those in EAS, EDAD, Statistics, and TMFD. The Graduate Council evaluated each program against the nine criteria for deletion established in the Graduate College Bylaws (Section VI.D.1.e) and found that none of the proposed eliminations were justified under those established criteria. The Graduate Council stated: "We found no evidence that any of the affected graduate programs meet the standards for deletion established by the Graduate College Bylaws. Each of these programs demonstrate adequate enrollments and strong demand for graduates; have exceptional faculty with strong records of research in their fields; and offer critically important graduate degrees to support education and workforce development in the state."

The Graduate Council further concluded that the claimed budget shortfall did not constitute a bona fide lack of financial support as envisioned in the Bylaws, stating: "A temporary or discretionary funding decision by the administration does not constitute a bona fide lack of financial support as envisioned in the Bylaws. Accordingly, we determined that none of the proposed eliminations are justified under the established criteria."

The Graduate Council also identified the same metric errors raised by affected departments, including the misuse of Academic Analytics data in violation of that platform's own guidelines, the incorrect cross-disciplinary z-score comparisons, and the computational errors described in Section B above. The Graduate Council concluded that "these issues call into question the validity and reliability of the metrics themselves and the methodology applied and thus cast doubt on whether any program eliminations based on these metrics and methodologies could be considered 'bona fide.'"

Executive Graduate Council: unanimous 8-0 vote to retain all programs. The Executive Graduate Council subsequently voted 8-0 to retain all affected graduate programs. These unanimous votes by both graduate governance bodies were disregarded by the Chancellor, the President, and the Board of Regents.

E. The Board of Regents Vote

On December 5, 2025, then-Chancellor Bennett presented the proposed eliminations to the Board of Regents, with NU System Interim Executive Vice President and Provost David Jackson and President Jeff Gold also presenting. The Board received testimony from 105 faculty, staff, students, and members of the public, reiterating many of the concerns about metrics, process, and

governance. Notwithstanding this unanimous public comment and the serious unresolved concerns documented throughout the process, the Board voted to eliminate all four departments based on materials provided to the Board.

These materials provided to the Board were materially inaccurate and misleading in multiple respects, including but not limited to the following:

The materials repeated the same incorrect z-score characterizations that had been used throughout the process, characterizing departments as "lower performing" based on negative z-scores, despite the ELT's own data analytics director having stated explicitly in writing that negative z-scores carry no implication of poor performance. The Board was not informed of this fundamental interpretive error.

The materials contained inaccurate data regarding faculty contributions, student enrollment, and degree completion, including the same factual errors identified by affected departments and documented in their APC hearing presentations. These errors had been brought to the ELT's attention repeatedly and remained uncorrected.

The materials did not disclose that the APC had issued a universal recommendation for delay across all eliminations; that the APC had raised serious, unresolved concerns about the validity of the metrics; or that the APC had stated that each eliminated unit "provides unique, valuable contributions to the research, creative, teaching, outreach, and Extension missions of the University." President Gold, in his "recommendations for consideration," did not mention the APC's recommendations against closure of Statistics and EAS.

The materials did not disclose that the UNL Graduate Council had voted 10-0 to retain all affected graduate programs, or that the Executive Graduate Council had voted 8-0 to retain them.

The materials did not disclose the revenue implications of the eliminations that multiple departments had presented to the APC, including EDAD's and EAS's documented analyses showing the departments to be revenue-positive.

The materials did not disclose that the administration's use of Academic Analytics data violated that platform's own published guidelines.

The materials were incomplete (e.g., omitting key data tables).

President Gold subsequently acknowledged, at a January 15, 2026 listening session, that there were problems with the UNL metric analysis, stating that his trust in those who had told him the metrics were validated had been misplaced. He stated he was open to revisiting the program eliminations. Gold and Interim Chancellor Ankerson retracted these statements the following day in a written communication to the UNL community.

F. Actions of Interim Chancellor Ankerson

Following the departure of Chancellor Bennett, Kathy Ankerson assumed the role of Interim Chancellor. Since assuming that role, Interim Chancellor Ankerson has refused to reinstate the eliminated departments or any of the terminated faculty, has refused to revisit or remediate the elimination process, and has adopted the position that the university must move forward without any attempt to repair the harms that have been done to the affected faculty, students, and departments. In a meeting with AAUP, APC, and Faculty Senate Executive Committee members in March, she stated she had conducted a thorough review between the listening session on

January 15th and the email on January 16th retracting statements on revisiting program eliminations. When pressed, she stated she had reviewed the process with EVC Mark Button.

G. EthicsPoint Complaints

Two faculty members from the Department of Statistics filed separate EthicsPoint reports regarding the professional misconduct and defamation described in this complaint. These reports went unanswered for a significant period. Chris Bilder followed up on his report by e-mailing Drew Nielson, Director of Compliance, for an update. No direct response was ever received from Nielson. However, a response to Bilder's report was given on the EthicsPoint website 1.5 hours after Bilder sent the e-mail to Nielson. The individual who responded did not identify themselves.

The response said that the complaints were dismissed on the grounds that they had been addressed through the APC and Board of Regents processes, despite the fact that the specific misconduct and defamation allegations raised in the EthicsPoint reports had not been presented to those bodies and thus could not have been considered by them. No meeting or substantive engagement with the concerns was offered.

H. Harms

The eliminations have caused the following documented harms:

Harm to faculty whose appointments are being terminated: In EAS, five faculty members (four tenured, one pre-tenure) have been dismissed, while six faculty with majority appointments in EAS have been retained in other departments in the College of Arts and Sciences or Institute for Agriculture and Natural Resources. In EDAD, three tenured and two tenure-track faculty are being terminated, while four have had their tenure transferred to the department of Teaching, Learning, and Teacher Education. In Statistics, nine tenured and two tenure-track faculty are being terminated, while two have had their tenure transferred to the new department combining Agricultural Leadership, Education, and Communication with Agricultural Economics. In TMFD, nine faculty are being terminated, seven of whom are tenured.

The selective retention and dismissal of tenured faculty appears to reflect the operational convenience of the ELT rather than any principled application of tenure protections or the requirements of the bylaws. Some faculty in EAS were offered retention agreements within days of the September 11, 2025 notification of the proposal for program closures.

Harm to professors of practice and term-appointed faculty: Professors of practice and other term-appointed faculty in the affected departments are having their contracts terminated before the end of their contract periods, in violation of the terms of their appointments.

Harm to faculty from the closed departments who are being retained: Faculty in the affected departments who are being retained have also suffered serious and ongoing harm. The elimination process has caused profound disruption to the professional and personal lives of all faculty in the affected departments, regardless of retention status. Retained faculty have been subjected to months of uncertainty about their employment, disruption to their research programs and active grants, damage to their professional reputations, loss of departmental identity and community, loss of colleagues with whom they had established productive working relationships, and the significant psychological toll of watching their departments be dismantled around them. These harms are ongoing and will continue as long as the eliminations remain in effect.

Harm to faculty outside of the closed departments: All faculty at UNL are now operating in a chaotic environment characterized by a lack of trust and transparency. Many faculty have lost colleagues and/or spent many hours wasting effort as part of the APC or in support of colleagues whose positions were eliminated. Faculty have had to adjust for loss of courses that their students relied on, elimination of members of their graduate students' committees, and uncertainty around co-investigators for active and pending grants. Most importantly, faculty have seen that the UNL administration failed to honor tenure agreements, effectively unilaterally closing programs without any budgetary necessity for the sole purpose of being able to fire tenured faculty under the purported cover of the bylaws. This has damaged the value of their own tenure contracts, and this damage will remain until and unless it is rectified by the administration.

Harm to graduate students: At the time the Graduate Council issued its letter, 332 currently enrolled graduate students faced displacement as a result of the proposed program eliminations. When accounting for students not enrolled in Fall 2025 but actively pursuing their degrees (particularly in EDAD, which identified 25 such students), the number rises to at least 357 students, or 9.75% of UNL's total graduate population. The consequences extend well beyond currently enrolled students, effectively shrinking UNL's graduate population by 9-10% for the foreseeable future, as fewer graduate programs will result in fewer graduate students for years to come.

Serious concerns exist regarding the feasibility of the administration's teach-out plans, which project completion by June 2029. It is not feasible for doctoral students in their first or second years of study. The proposed teach-out plans are already failing to meet students' basic degree requirements. The Degree Completion website (for example <https://cas.unl.edu/meteorology-climatology-degree-completion/>) states that the plan is intended to support graduate students by honoring individual programs of study (POSs) and memoranda of courses (MOCs). Some graduate students have already been told to "brainstorm about alternatives" because required courses in their approved POS/MOC are not being offered. This represents a direct failure to deliver the approved programs of study outlined in the signed plans of study that govern each student's degree requirements. These failures are especially consequential for doctoral students in earlier stages of their programs, who depend on a structured sequence of coursework and advising over multiple years.

UNL Graduate Studies policy allows doctoral students eight years to complete their degrees; expecting completion in approximately half that time is not reasonable, particularly for the large number of non-traditional, working professionals enrolled in EDAD's doctoral programs. Faculty in affected units are likely to leave before teach-out plans are complete, meaning that students may not be able to receive the quality of graduate education they were promised and to which they are entitled. Students funded as teaching assistants had a reasonable expectation of continued funding, but with fewer classes being taught and faculty departing with their grants, some are likely to lose funding, which may extend their time to completion or make it impossible for them to continue. These conditions also raise concerns about UNL's ability to maintain its accreditation obligations to affected students through the Higher Learning Commission (HLC).

Harm to undergraduate students: Undergraduate students in EAS, Statistics, and TMFD, as well as students in other programs that relied on courses offered by the affected departments,

have suffered disruption to their academic programs, uncertainty about degree completion, and loss of academic programs in which they enrolled in good faith.

Harm to the institution: UNL has suffered harm to its reputation and its relationships with alumni and donors, including cancelation of planned gifts. The faculty at large has been harmed by the precedent set for the treatment of tenure and academic freedom. Nebraska has lost unique academic programs, including the only meteorology degrees in the state, the only statistics BS, MS, and PhD programs in the state, the only PhD programs in educational leadership in the state, the only graduate degrees in Earth Sciences in the state, and the only undergraduate and graduate textiles program in the state.

MANDATORY ELEMENT 4.2.1.4: RELEVANT STANDARDS

The following standards are relevant to the evaluation of this complaint:

1. Board of Regents Bylaws (available at <https://cdn.nebraska.edu/docs/board/bylaws.pdf>):

- Section 4.11: Termination of a Continuous Appointment — permits termination only for adequate cause, retirement, *bona fide* discontinuance of a program or department, or extraordinary circumstances of financial exigency
- Section 4.9: Faculty Practice and Faculty Research appointments — may only be terminated prior to expiration for those same reasons
- Section 4.13.2(d)(2): Grievance procedures specifically for disputes over whether a discontinuance is *bona fide*
- Section 4.16: Definition of financial exigency
- Section 4.2: Academic freedom provisions
- Section 2.10: Board authority to create, merge, or eliminate departments "when size or educational efficiency demands it"

2. University of Nebraska-Lincoln Bylaws (available at <https://chancellor.unl.edu/bylaws-university-nebraska-lincoln/>):

- Section 1.2.7.2.D: Responsibilities of the APC, including the requirement that all affected persons have access to all relevant information including detailed budget data; that they have an opportunity and a reasonable time to present data and opinions; that the APC work with administration and affected parties to determine an effective date for implementation; and that rights under academic tenure be protected
- Section 1.2.7.2.E: Requirement that changes or elimination of programs include time and opportunity for existing personnel to qualify for positions in other programs

3. Procedures To Be Invoked For Significant Budget Reallocations And Reductions (2011) (available at <https://apc.unl.edu/procedures-be-invoked-significant-budget-reallocations-and-reductions/>):

- Process/Principles 1: Consultation and decision-making, including the importance of faculty voice and minimizing misinformation

- Process/Principles 2.1: Protection of faculty tenure rights and sensitivity to AAUP guidelines
- Process/Principles 2.2: Timely availability of accurate information, including the requirement that information be made available so corrections can be made before public release
- Process/Principles 2.3: Meaningful consultation with faculty, staff, and students; consultation defined as more than giving and receiving information
- Process/Principles 2.4: Consideration of inter-program and inter-college relationships
- Reduction and Reallocation Procedures 4: Requirement for public APC hearings with broad participation
- Reduction and Reallocation Procedures 5: APC deliberation, recommendations, and requirement that the Chancellor work with shared governance partners when a negative recommendation is made
- General Issues 3: Primacy of academic programs; elimination as a last resort
- General Issues 5: Academic freedom and tenure; program eliminations must not abrogate tenure, academic freedom, or due process
- General Guidelines 2: Adherence to Board of Regents and UNL Bylaws
- General Guidelines 3: Alignment with strategic goals and institutional priorities
- General Guidelines 4: Consideration of staffing, facilities, program reviews, and constituencies
- General Guidelines 6.2: Reduction of programs with excess capacity only; consideration of whether programs are essential and whether capacity is available elsewhere

4. Graduate College Bylaws, Section VI.D (Procedures for Deletion or Consolidation of Graduate Programs, available at docs.nebraska.edu/unop/docs/Board%20of%20Regents/Policies/policies/graduate-college-policy-handbook.pdf):

- Section VI.D.1.e: Nine specific criteria that must be met to justify graduate program deletion or consolidation, including lack of need or demand for graduates; substandard quality; lack of adequate faculty; lack of adequate facilities; unnecessary duplication; transfer of a unit; lack of adequate financial support or financial exigency; substantial increase in cost; or substantial savings affected [sic] by consolidation
- Section VI.D.1.f: Requirement that "the overall importance of each program must be considered within the context of the role and mission of each campus as promulgated by the Board of Regents"
- Sections VI.D.2.a–e: Required procedures for initiating, reviewing, and recommending deletion or consolidation of graduate programs, including mandatory review by the campus Graduate Council and the Executive Graduate Council

5. Board of Regents Policies, RP-2.1.6 (pp. RP-20 – RP-22): UNL's role and mission as the primary research and doctoral degree-granting institution in the state, with primary responsibility for the land-grant mission and for graduate education especially at the doctoral and professional

levels, drawing on Boyer's framework for the scholarships of discovery, integration, application, and teaching

6. AAUP Recommended Institutional Regulations on Academic Freedom and Tenure:

Standard that decisions to discontinue programs "will be based essentially upon educational considerations, as determined primarily by the faculty as a whole or an appropriate committee thereof," and that educational considerations "do not include cyclical or temporary variations in enrollment" but "must reflect long-range judgments that the educational mission of the institution as a whole will be enhanced by the discontinuance"

7. Academic Analytics Principles and Guidelines for Implementation: Academic Analytics' own published guidelines requiring that its data be interpreted within appropriate disciplinary contexts and explicitly stating that the data "should not be deployed as a punitive tool to assess faculty members nor to deprive faculty members or units of resources"

8. Standards governing professional statistical practice and the ethical use of data in institutional decision-making, as relevant to the professional misconduct and defamation allegations

MANDATORY ELEMENT 4.2.1.5: HOW THE RELEVANT STANDARDS HAVE BEEN VIOLATED

A. The Eliminations Were Not Bona Fide (Board of Regents Bylaws 4.11 and 4.10)

Board of Regents Bylaw 4.11 permits termination of a continuous appointment only for *bona fide* discontinuance of a program or department, absent a declaration of financial exigency — which was not made. Board of Regents Bylaw 4.9 similarly limits early termination of Faculty Practice and Faculty Research appointments. The eliminations of EAS, EDAD, Statistics, and TMFD were not bona fide for the following reasons:

In EAS, approximately one third of faculty were alerted to retention offers within days of September 11, 2025. The Board of Regents ultimately approved retention of the meteorology and geology minors alongside the elimination of the department. A bona fide program elimination does not selectively retain faculty and programs based on operational convenience. This is a restructuring. Otherwise, it would be possible for the UNL administration to unilaterally close a department while retaining all but one member of the faculty, rebrand the program, and carry on without any explanation.

In EDAD, four tenured faculty were told they would be retained in TLTE and the Masters in Higher Education is being relocated to that department rather than eliminated. As in EAS, this is a restructuring conducted under the pretext of elimination with three tenured faculty losing their jobs, along with two tenure-track faculty members and six professors of practice.

In all cases, the process was used as a mechanism to terminate the employment of tenured faculty chosen at the ELT's discretion, a purpose that Bylaw 4.11 does not permit absent financial exigency. The UNL Graduate Council independently reached the same conclusion, finding that "a temporary or discretionary funding decision by the administration does not constitute a bona fide lack of financial support as envisioned in the Bylaws" and that none of the proposed eliminations were justified under the established criteria.

EVC Button has reportedly argued that any program elimination approved by the Board of Regents is bona fide by definition. This interpretation renders the term "bona fide" meaningless and would eliminate any basis for a grievance under Bylaw 4.13.1(d)(2) — an outcome the bylaws clearly do not contemplate.

B. The Graduate College Bylaws Were Violated (Graduate College Bylaws VI.D)

The Graduate College Bylaws establish nine specific criteria that must be met to justify graduate program deletion. The UNL Graduate Council reviewed all four programs against these criteria and found that none of the proposed eliminations met the standards for deletion. There is no financial exigency, and no other criterion from the established list is satisfied. The Graduate Council explicitly found that "choosing which faculty to retain based on administrative preference constitutes a clear violation of tenure protections." The administration proceeded with the eliminations notwithstanding the Graduate Council's unanimous 10-0 vote to retain all programs and the Executive Graduate Council's unanimous 8-0 vote to retain all programs.

C. The APC Was Not Empowered to Act as Required (UNL Bylaw 1.2.7.2.D)

UNL Bylaw 1.2.7.2.D requires that before any program elimination is recommended, all affected persons have access to all relevant information including detailed budget data, have an opportunity and a reasonable time to present data and opinions, and that rights under academic tenure be protected. Each of these requirements was violated:

Departments were provided with minimal information. In EDAD's case, one line of an Excel spreadsheet and no contextual budget data. In EAS's case, one unlabeled graph of program performance. Data underlying the elimination decisions was actively withheld; university leadership instructed staff to withhold information that would previously have been available to departments.

The APC voted against elimination of EAS and Statistics. These negative recommendations were disregarded without the required effort to identify alternatives with shared governance partners. The APC's universal recommendation for delay was ignored.

The APC was given no opportunity to determine an effective date for implementation. ELT members refused to recuse themselves from APC votes on the proposals they had crafted, potentially affecting the outcome of at least the very close EDAD vote (11-10).

Rights under academic tenure were not protected. Faculty were retained or dismissed based on apparent preferences of the ELT rather than tenure status.

D. Faculty Were Not Given Opportunity to Qualify for Other Positions (UNL Bylaw 1.2.7.2.E)

UNL Bylaw 1.2.7.2.E requires that program eliminations include time and opportunity for existing personnel to qualify for positions in other programs. This requirement was violated. The eliminations coincide with a hiring freeze, making it substantially less likely that displaced faculty can qualify for other positions. Notably, both UNO and UNK hired/will hire tenure-line faculty in Educational Administration in 2025-2026 and no effort was made to move tenured faculty at UNL into those positions. Similarly, three faculty members in TLTE announced they were leaving and no effort was made to move the three tenured EDAD faculty into those roles with their four retained colleagues.

E. The APC Procedures Were Violated in Letter and Spirit

Consultation (Principles 2.3): The ELT did not meaningfully consult faculty, students, or staff. It withheld information, refused to receive critiques of the metrics, discouraged criticism at the September 11, 2025 department meetings, and released proposed eliminations publicly less than 24 hours after informing departments. Faculty who sought information were told it was being withheld on the instructions of university leadership. EVC Button explicitly refused to attend a public Statistics colloquium that provided feedback concerning faults in the metrics, stating it was "not part of the process."

Information (Principles 2.2): The ELT failed to provide accurate information in a timely manner and declined to make corrections before or after plans were released to the public. The z-score formulation and interpretation errors were raised at a meeting for chairs and directors on May 15, 2025 and were never corrected in the subsequent 4 months before the proposals were made public, in addition to corrections requested in Fall 2025 that were never made. The APC acknowledged that it could not validate the metrics due to the lack of access to underlying data. Faculty in EDAD received emails from the Office of Graduate Studies and the Registrar stating they had been directed not to share requested information, such as the total number of graduate students at UNL, with the department.

Personnel and Tenure Rights (Principles 2.1): The ELT argued that because financial exigency was not declared, it could use program elimination to terminate tenured faculty of its choosing. This is a misreading of the bylaws that effectively eliminates tenure protections for any faculty member whose department can be designated for elimination. The Graduate Council found this amounted to "an end-run around tenure."

Public Hearings (Reduction Procedures 4): The APC hearings were not public. Armed guards prevented attendance beyond eight pre-vetted representatives per department, with each given only 45-50 minutes. A livestream does not constitute a public hearing. The scope of testimony was so circumscribed that it was impossible for all affected persons to have an adequate opportunity to present.

APC Recommendations (Reduction Procedures 5): When the APC made negative recommendations on the closures of EAS and Statistics and issued a universal recommendation for delay, the Chancellor did not work with shared governance partners to identify alternatives, as required.

Primacy of Academic Programs (General Issues 3): Program elimination was not a last resort. The estimated savings from the four department closures was approximately \$6.7 million — very close to the \$6.5 million in additional cuts beyond the \$21 million structural deficit. President Gold has since acknowledged that much of the savings from the program closures have been allocated toward faculty raises, which suggests that cuts were unnecessary. Chancellor Bennett did not wait until the full accounting of the Voluntary Separation Incentive Program (VSIP) offers was finalized, and subsequent discussions of strategic cluster hires using those savings (an additional \$4 million) suggest there was no financial necessity to eliminate the affected faculty positions.

Academic Freedom and Tenure (General Issues 6): Tenure protections exist to prevent administrators from making ad hoc or subjective decisions to dismiss well-performing faculty for budgetary reasons short of financial exigency. The selective retention and dismissal of tenured

faculty based on the apparent operational preferences of the ELT violates the principles of academic freedom and tenure on which the institution depends.

Strategic Goals (General Guidelines 3): The ELT admitted failure to consider metrics such as experiential learning, alumni relations, and job placement. All four departments were models in these institutional priorities. Notably, the APC itself observed that "some units that rated very highly compared to AAU peers were proposed for elimination," directly contradicting UNL's stated goal of rejoining the AAU. Particularly given that each of the four departments eliminated were weighted heavily towards graduate education, a key metric for AAU in phases I and II, the decision seems significantly at odds with stated strategic goals.

Program Review Criteria (General Guidelines 4): All four departments had undergone recent Academic Program Reviews with positive outcomes, which were ignored by the ELT.

Excess Capacity (General Guidelines 6.2): None of the four eliminated departments had excess capacity:

- EAS held the only Meteorology BS, MS, and PhD and only Earth Sciences MS or PhD in Nebraska
- EDAD held the only PhD programs in P-12 and Higher Education in Nebraska and the only EdD with specializations in Higher Education and Community College Leadership and ranked at or above AAU peer levels on field-normed research productivity measures
- Statistics ranked at the 75th percentile by SRI (Scholarly Research Index) among all Statistics departments nationally, among the top 20 UNL departments by SRI, and had performance already at AAU levels - making its elimination directly contrary to UNL's AAU aspirations
- TMFD was the only undergraduate and graduate textiles program in Nebraska, home to the world's only Quilt Studies certificate, and ranked #2 among AAU peer institutions on multiple research metrics

F. UNL's Mission as Primary Provider of Graduate Education Was Violated (Board of Regents Policies RP-2.1.6 and Graduate College Bylaws VI.D.1.f)

UNL's role and mission as established by the Board of Regents identifies UNL as "the primary research and doctoral degree-granting institution in the state for fields outside the health professions" with "primary responsibility in the state for graduate education, especially at the doctoral and professional levels." The Graduate College Bylaws require that the overall importance of each program be evaluated in the context of this mission. All four eliminated departments made unique and irreplaceable contributions to this mission, and the Graduate Council found that their elimination "directly goes against this stated mission." In total, the eliminations displaced at least 332 to 357 currently enrolled graduate students - 9-10% of UNL's total graduate population, literally decimating UNL's enrolled graduate students - with lasting consequences for UNL's capacity to fulfill its graduate education mission.

G. Academic Analytics Guidelines Were Violated

The administration's use of Academic Analytics data violated Academic Analytics' own published Principles and Guidelines, which explicitly prohibit the use of its data as a punitive tool to deprive faculty or units of resources and require that data be interpreted within

appropriate disciplinary contexts. These violations were identified and documented by the UNL Graduate Council.

H. Professional Misconduct and Defamation

All complainants join in the following allegations of professional misconduct and defamation against respondents Ankerson, Button, Heng-Moss, Nelson, Nielsen, Barnes, Gonzales, Volkmer, Jackson, and Gold:

The ELT, under the supervision of the Chancellor and the NU System, formulated and used z-scores in a manner they knew to be incorrect. The ELT's own data analytics director explicitly stated in writing, prior to the elimination proceedings, that “a negative score does not imply that a unit does something poorly.” Despite this, the ELT used negative z-scores as the primary justification for characterizing departments as “lower performing” before the APC, the Graduate Councils, and the Board of Regents. The z-scores were also incorrectly formulated, comparing departments across fundamentally different disciplines as if they were equivalent: a statistically invalid approach that the ELT was informed of in September 2025 and declined to correct. The metrics also contained the errors in statistical methods that rendered entire categories of results mathematically meaningless. This constitutes professional misconduct.

The administration publicly characterized all four departments as “lower performing” in formal institutional proceedings, based on metrics they knew to be incorrectly interpreted and incorrectly formulated. For EAS, the administration publicly stated that “higher performing” faculty would be retained, strongly implying that fired individuals were low-performing. In doing so, the ELT defamed the faculty members of the affected departments, damaging their professional reputations in statements made verbally and in writing to institutional governance bodies, the press, and the Board of Regents. The UNL Graduate Council identified and documented the inaccuracies and misleading characterizations in the materials provided to governance bodies, corroborating the defamation claims of the complainants.

The EthicsPoint reports filed by Statistics faculty regarding these specific allegations were inadequately investigated and summarily dismissed without substantive engagement, on grounds that do not withstand scrutiny: the specific misconduct and defamation allegations had not been presented to the APC or the Board of Regents, and thus could not have been considered or resolved through those processes.

MANDATORY ELEMENT 4.2.1.6: REMEDY SOUGHT

A. Reinstatement of All Faculty

The complainants seek the reinstatement of faculty in all four eliminated departments. Faculty should be given the option to choose another unit in which to be re-housed, or to return to their reinstated department.

B. Reinstatement of All Four Departments

The complainants seek the reinstatement of all four eliminated departments — EAS, EDAD, Statistics, and TMFD — with full funding restored and all faculty and staff positions reinstated. Specifically:

- **EAS:** Reinstatement of the department and programs with funding for at least 18 faculty lines, including one research faculty, 16 tenure-track lines, and one professor of practice, to include reinstated personnel; for faculty who have departed due to the elimination, they should be given the opportunity to return before re-hiring in that faculty line.
- **EDAD:** Reinstatement of the Ph.D., Ed.D. and P-12 MA programs with funding for at least nine tenure-track faculty and six professors of practice; for faculty who have departed due to the elimination, they should be given the opportunity to return; if they choose not to return, the department should be permitted to hire replacement faculty.
- **Statistics:** Reinstatement of all faculty, staff, and assistantship positions; for faculty who have departed due to the elimination, they should be given the opportunity to return; if they choose not to return, the department should be permitted to hire replacement faculty; the four new faculty positions promised to Department Chair Bhaskar Bhattacharya at the time of his hiring in Spring 2024 must be honored.
- **TMFD:** Reinstatement with full faculty and staff; for faculty who have departed due to the elimination, they should be given the opportunity to return; if they choose not to return, the department should be permitted to hire replacement faculty.

C. Endowment and Foundation Funds

For all four departments, affected faculty and personnel should be given meaningful power and responsibility in working with the NU Foundation and relevant foundations regarding the disposition of departmental endowment and other foundation funds. These funds were donated to, and overseen by, the respective departments, and any disposition should align with donor intent.

D. Accountability for Respondents

The complainants recognize that some of the harms described in this complaint may have resulted from errors in judgment, inadequate oversight, or misplaced trust in flawed data and analyses, rather than solely from deliberate misconduct. In a restorative spirit, and in the interest of rebuilding trust between faculty and administration at UNL and across the NU System, the complainants request the following from the respondents who remain at UNL or the NU System:

1. **A formal, public acknowledgment** that the metrics used in the 2025 budget reduction process were flawed in their formulation, their interpretation, and their application, and that the process used to identify and eliminate the four affected departments did not comply with the requirements of the Board of Regents Bylaws, the UNL Bylaws, and the APC Procedures.
2. **A formal, public apology** to the faculty, staff, and students of the Departments of Earth and Atmospheric Sciences, Educational Administration, Statistics, and Textiles, Merchandising & Fashion Design for the harms caused by this process, including the termination of tenured faculty appointments, the disruption to students' academic programs, and the damage done to the professional reputations and careers of faculty in the affected departments.
3. **A formal, public apology** to the shared governance bodies - including faculty members of the Academic Planning Committee, the UNL Graduate Council, and the Executive

Graduate Council - whose recommendations were disregarded, and whose members devoted substantial time and effort to a process whose outcomes were predetermined.

4. **A personal acknowledgment** from each respondent, in writing to the complainants, of their individual role in the events described in this complaint and of the specific ways in which their actions or failures to act contributed to the harms suffered by the complainants.
5. **A commitment**, enforceable through the ARRC process, to engage in good faith with the institutional guardrails requested in Section F of this complaint, so that these harms are not visited upon other faculty in the future, including a commitment to generate any future metrics in partnership with faculty members from each and every department, unit, institute, and center.

Note: The complainants do not foreclose the possibility that, depending on the findings of the Special Committee, additional accountability measures may be warranted for specific respondents. However, the complainants believe that a genuine acknowledgment of wrongdoing and a sincere public apology would represent a meaningful first step toward repairing the harm that has been done and would serve the institution and its faculty far better than purely punitive measures.

E. External Review of EthicsPoint Process

An independent, external review of the university's handling of the EthicsPoint reports filed in connection with these events should be conducted. The results of this review should be made available to all faculty, staff, and students in the NU System and to the public.

F. Institutional Guardrails

To prevent future violations of academic freedom and tenure rights, the complainants request the following institutional changes:

1. The term "bona fide" should be defined wherever it appears in the bylaws with respect to program closures
2. Language should be strengthened concerning the expectation of faculty re-housing following program closures
3. Rights of faculty with split or partial appointments to be retained in their tenure home should be enumerated
4. The expectations of shared governance should be spelled out, including the power of the Chancellor to make recommendations to the APC and to choose whether to act on the committee's recommendations, and the voting rights of administrators on the APC
5. Faculty should be included in the development of metrics and the quantitative and qualitative processes of budget reduction, including through engagement with the Faculty Senate Budget Committee
6. Processes for selecting programs for closure should be explicit, statistically sound, independently validated, and required to be in place prior to any program elimination proceeding; the selection determination and voting deliberations must be mapped to a robust accounting of all criteria, quantitatively and qualitatively as warranted

7. A report should be mandated and made public that includes all final metrics, the source code and underlying data used to calculate those metrics such that the final metrics are readily reproducible, and a full accounting of the decision-making process
 8. Faculty experts in fields that have the expertise to help, such as Statistics and Educational Administration, should be called upon to take part in any budget reduction process
 9. Qualitative analysis must be held to the same standards of rigor as quantitative analysis
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MANDATORY ELEMENT 4.2.1.7: TYPE OF SPECIAL COMMITTEE REQUESTED

The complainants request that the ARRC convene a Special Grievance Committee due to the complex and varied violations of tenure and specified appointments. It is our position that in this unprecedented situation, the same committee should be empowered to address academic freedom claims independent of tenure or tenurable status of complainants.

APPENDICES

Appendix A: Department of Earth and Atmospheric Sciences (EAS) — Individual Grievance

Contains the full individual grievance submitted on behalf of EAS faculty, including: basis of complaint and ARRC standing; bylaws violated with detailed analysis; parties to violations; harms; and department-specific requested remedies. Supporting documents referenced include: EAS Academic Program Review report; EAS report to the APC; recording of the APC hearing for EAS (available at mediahub.unl.edu/media/25758); recording of the December 5, 2025 Board of Regents meeting.

Appendix B: Department of Educational Administration (EDAD) — Individual Grievance

Contains the full individual grievance submitted on behalf of EDAD faculty, including: basis of complaint and ARRC standing; bylaws violated with detailed analysis; detailed budget and financial analysis demonstrating EDAD is revenue-positive; overview of all academic programs; detailed analysis against all APC criteria for elimination and non-elimination; six substantive focus areas (student demand, program quality, university mission alignment, workforce relevance, external support, and program duplication); and department-specific requested remedies. Supporting documents referenced include: EDAD 2022 Academic Program Review Committee Report (Appendix A to EDAD grievance); CEHS Promotion and Tenure Committee Letter, November 6, 2025 (Appendix B to EDAD grievance).

Appendix C: Department of Statistics — Individual Grievance

Contains the full individual grievance submitted on behalf of Statistics faculty, including: detailed analysis of z-score formulation and interpretation errors; completion majors metric analysis; analysis of incorrectly formulated z-scores with statistical and non-statistical explanations; additional errors by the ELT including incorrect data, excluded faculty, poorly formulated metrics, and lack of reproducibility; discrimination against smaller departments; EthicsPoint submission documentation and university response; and important comparative metrics demonstrating departmental performance including ASA Fellows ranking and SRI percentile data.

The following materials referenced in the Statistics grievance are attached as sub-appendices:

- **Appendix C-1:** [PLACEHOLDER — Jason Casey document dated May 17, 2025, regarding correct z-score interpretation, provided by ELT to all UNL unit leaders]
 - **Appendix C-2:** [PLACEHOLDER — One-page document provided by ELT to UNL and Executive Graduate Councils regarding Statistics metrics]
 - **Appendix C-3:** [PLACEHOLDER — Leaked document presented to the APC prior to the release of the original budget reduction proposal]
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Appendix D: Department of Textiles, Merchandising & Fashion Design (TMFD) — Individual Grievance

Contains the full individual grievance submitted on behalf of TMFD faculty, including: department overview and unique statewide role; detailed analysis of metrics-based concerns, including omission of creative scholarship and Extension; faculty composition and size comparison with peers; student demographics including gender, ethnicity, and first-generation data; graduate program enrollment data; student outcomes and degree completion; research productivity and AAU peer comparisons with specific ranking data; short-term impact of elimination on other programs across eight colleges; research grants received; and analysis against APC criteria for elimination and non-elimination.

Appendix F: UNL Graduate Council Letter to Executive Graduate Council, October 22, 2025

Contains the full text of the UNL Graduate Council's unanimous 10-0 recommendation to retain all graduate programs proposed for elimination, including: evaluation of each program against Graduate College Bylaw criteria; concerns about inaccurate information in the program elimination proposals; concerns about the validity of the metrics and methodology; concerns about the impact on graduate education at UNL; concerns about the feasibility of teach-out plans; and concerns about negative effects on graduate faculty and the threat to tenure and academic freedom. Signed by all ten members of the UNL Graduate Council.

End of Formal Written Complaint

Submitted on behalf of all complainants named in Section 4.2.1.1